No. ____ TENTH JUDICIAL DISTRICT

SUPREME COURT OF NORTH CAROLINA

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JEFFERSON GRIFFIN,

Respondent-Appellee,

v.

NORTH CAROLINA STATE BOARD OF ELECTIONS,

Petitioner-Appellant,

and

ALLISON RIGGS,

Intervenor-Appellant.

From Wake County
No. COA25-181

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STATE BOARD'S PETITION FOR DISCRETIONARY REVIEW

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TO THE HONORABLE SUPREME COURT OF NORTH CAROLINA:

Under N.C. Gen. Stat. § 7A-31(c) and Rule 15(a) of the North Carolina Rules of Appellate Procedure, the North Carolina State Board of Elections respectfully petitions this Court to certify for discretionary review the judgment of the Court of Appeals. As described below, the subject matter of this appeal has significant public interest, this appeal involves legal principles of major significance to the jurisprudence of North Carolina, and the decision of the Court of Appeals is in conflict with decisions of this Court. N.C. Gen. Stat. § 7A-31(c)(1)-(3).

INTRODUCTION

The significance of this case to the people of North Carolina is self-evident. At stake is whether votes cast by more than 60,000 North Carolinians will be counted in the November 2024 general election for a seat as Associate Justice on this Court. As all parties agree, this case is of "great public importance." No. 320P24, Pet. for Writ of Prohibition at 18. A case of such importance should be resolved by the State's highest court.

This case also involves legal principles of major significance. The decision below addresses important issues of state election law that will affect how elections are administered, not only in this race but also in future contests. Those issues include whether the Board has statutory authority to promulgate rules on service of election protests, whether alleged registration errors by the Board should disenfranchise voters who followed the voting instructions they were given, and whether a statute that the General Assembly unanimously passed in 2011 allowing certain overseas voters to vote in state elections is facially unconstitutional. These are legally significant issues by any measure.

The decision below is also in conflict with this Court's precedent. This Court has held that the judiciary should "minimize disruption" to settled election rules by ordering relief that runs prospectively for future elections rather than by changing the rules of a pending or past election cycle. *Pender County v. Bartlett*, 361 N.C. 491, 510, 649 S.E.2d 364, 376 (2007). And for more than a century, this Court has repeatedly confirmed that votes cast in compliance with guidance from election officials cannot be retroactively discarded. *State ex rel. Quinn v. Lattimore*, 120 N.C. 426, 430-31, 26 S.E. 638, 639 (1897). Yet the decision below allows votes to be discounted months after the November 2024 general election—even if voters cast a ballot under the rules in place during the voting process. A decision of that kind is incompatible with this Court's longstanding case law.

It is beyond serious dispute that this case satisfies the Court's criteria for discretionary review. And because the public interest is best served by this Court's timely consideration of the significant issues in this case, the Board respectfully requests expedited review of this petition—and is prepared to proceed on any schedule that the Court deems appropriate.

STATEMENT OF THE FACTS

The facts of this dispute are familiar to the Court.[1] In brief, Respondent Judge Jefferson Griffin and Intervenor Associate Justice Allison Riggs were candidates in the statewide 2024 general election for Associate Justice on the North Carolina Supreme Court. (R p 9) Final canvassed results show that Justice Riggs prevailed

[1]The statement of facts in this petition is identical to the statement in the Board's simultaneously filed petition for writ of supersedeas.

by 734 votes. (R p 10) On November 19, 2024, Respondent filed election protests throughout the State challenging the election results. (R p 10)

In the protests at issue, Respondent challenged more than 60,000 votes cast by (1) voters who Respondent alleges registered to vote without providing certain identifying information, (2) military and overseas voters who did not submit a copy of their photo ID with their ballot, and (3) military and overseas-citizen voters who have not lived in the United States but who the General Assembly authorized to vote in state elections due to their familial connection to the State. (R p 11)

The Board dismissed these protests at the "preliminary consideration" stage —concluding both that Respondent had failed to comply with procedural filing requirements, and that he had failed to establish "probable cause" of an election-law violation. (R pp 9-51) Respondent filed petitions for judicial review in Wake County Superior Court for each of the three protests.[2] (R pp 1-51, 157-65, 215-23) The superior court denied the petitions, "conclud[ing] as a matter of law that the Board's decision was not in violation of constitutional provisions, was not in excess of statutory authority or jurisdiction of the agency, was made upon lawful procedure, and was not affected by other error of law." (R pp 152, 210, 269)

[2]The Board removed those petitions to federal court. The district court remanded them back to Wake County Superior Court. On February 4, 2025, the Fourth Circuit held that the Board correctly removed to federal court and "direct[ed] the district court to modify its order to expressly retain jurisdiction of the federal issues identified in the Board's notice of removal should those issues remain after the resolution of the state court proceedings, including any appeals." *Griffin v. N.C. State Bd. of Elections*, No. 25-1018(L) (4th Cir. Feb. 4, 2025) (per curiam), slip op. at 9, 11 (citing *England v. La. State Bd. of Med. Exam'rs*, 375 U.S. 411 (1964)). Following this decision, the Board filed a notice in superior court under *England* expressly reserving its federal-law arguments for federal court. (R pp 128-33) The Board again reserved under *England* in its brief to the Court of Appeals. No. COA25-181, Response Br. at 81-83. The Board incorporates these *England* reservations by reference.

Respondent appealed to the Court of Appeals. (R pp 154-56, 212-14, 271-73) Over a dissent, the Court of Appeals reversed. The Court held that the Board erred when it concluded that Respondent had not properly served his protests or shown probable cause of an election law violation or irregularity. Slip op. at 12-19.

The Court first held that Respondent's protests did not fail for improper service. *Id.* at 16. It held that notwithstanding the Board's statutory authority to "promulgate rules providing for adequate notice" of election protests, N.C. Gen. Stat. § 163-182.10(e), the Board lacked authority to require election protesters to provide notice to voters that they were challenging their votes. Slip op. at 14-15. The Court also held that, in any event, Respondent satisfied the Board's service rules by mailing voters a postcard with a QR code stating that their votes may be subject to protest. *Id.* at 15.

The Court next held that Respondent had shown probable cause sufficient to allow his protests to proceed beyond the preliminary stage of the protest proceedings. *Id.* at 16-19. It based this holding on the fact that this Court had decided "to issue a stay of certification" concerning this election. *Id.* at 19. It also stated that a recent decision of the Fourth Circuit that rejected a federal constitutional challenge to an unrelated state statute showed that Respondent had demonstrated probable cause of an election-law violation in this case. *Id.* (citing *Sharma v. Hirsch*, 121 F.4th 1033, 1043 (4th Cir. 2024)).

Having concluded that probable cause existed, the Court chose not to remand this case for further proceedings before the Board, as contemplated by statute. *See* N.C. Gen. Stat. § 163-182.10(a), (c). It instead proceeded to review for itself the

merits of the three categories of protests that Respondent had advanced. Slip op. at 19-32.

First, the Court addressed the protests concerning voters who are alleged to have incomplete registrations. *Id.* at 19-25. The Court concluded that any voter who has registered since the adoption of N.C. Gen. Stat. § 163-82.4(a)(11), and who has not provided their driver's license number or the last four digits of their social security number with their registrations, or who has not been assigned a unique identifier number by elections officials, is not lawfully registered and may not vote in the State's elections. Slip op. at 24-25.

Second, the Court addressed the protests concerning military and overseas voters who did not provide photo ID with their ballots. *Id.* at 25-30. It held that a statute that requires domestic civilian voters to present photo ID with their absentee ballots also applied to military and overseas voters. *Id.* at 27-29. In doing so, the Court invalidated a rule that was approved without controversy by the Rules Review Commission. *Id.*; *see* 08 N.C. Admin Code 17 .0109.

Third, the Court addressed the protests concerning votes cast by certain overseas-citizen voters who the General Assembly unanimously authorized to vote in state elections. Slip op. at 30-32; R p 37. The Court held that this statute is facially unconstitutional. Slip op. at 30-32.

The Court of Appeals did not try to reconcile its decision with this Court's holding in *Pender County v. Bartlett* that challenges to settled election practices must be litigated before an election takes place. 361 N.C. 491, 649 S.E.2d 364 (2007). Nor did the Court address *State ex rel. Quinn v. Lattimore* and its progeny, where this Court has repeatedly recognized that votes cast in compliance with

official guidance from election officials cannot be retroactively discarded. 120 N.C. 426, 26 S.E. 638 (1897).

Having addressed the merits of Respondent's protests in this manner, the Court of Appeals reversed the superior court's affirmance of the Board's dismissal of Respondent's three groups of protests. Slip op. at 34-36. The Court of Appeals further ordered the superior court to "remand [each] matter to the Board" for further proceedings. *Id.* at 35-36.

The Court also provided instructions to the Board on remand. For voters with allegedly incomplete registrations and military and overseas voters who did not present photo ID, the Court instructed the Board to: (1) identify the affected voters, (2) notify those voters of the alleged defects in their registrations or their failure to present photo ID, (3) allow voters fifteen business days to cure the defects, and (4) change the final vote count by removing votes cast by those voters who fail to cure the alleged defects. *Id.* at 34-36. Separately, the Court ordered that the final vote total be changed by removing votes cast by those overseas voters who, the Court held, are categorically ineligible to vote. *Id.* at 36.

Judge Hampson dissented. The dissent first observed that Respondent had not identified any voters who were, "in fact, ineligible to vote in the 2024 General Election under the statutes, rules, and regulations in place in November 2024 governing that election." Slip op. at 1 (Hampson, J., dissenting). The dissent would have affirmed the rejection of Respondent's protests for that reason alone: "Changing the rules by which . . . lawful voters took part in our electoral process after the election to discard their otherwise valid votes," the dissent explained, "is directly counter to law, equity, and the Constitution." *Id.* at 1; *see also id.* at 13-22.

Separately, the dissent indicated that it would have affirmed the Board's dismissal of the protests because they were not properly served and because they failed on the merits. *Id.* at 5-13, 22-60.

REASONS WHY CERTIFICATION SHOULD ISSUE

I. This Case Is Exceptionally Important.

This Court should grant discretionary review because this case raises issues of enormous importance. N.C. Gen. Stat. § 7A-31(c)(1). The parties agree on this score. In his petition for a writ of prohibition, Respondent sought to have this Court resolve his claims in the first instance because this case is "a matter of such great public importance." No. 320P24, Pet. for Writ of Prohibition at 18.

Members of this Court have also recognized the exceptional importance of this case. Every Justice has written or joined an opinion describing this case as raising issues crucial to the State's democratic integrity. *Griffin v. N.C. Bd. of Elections*, 910 S.E.2d 348, 349 (N.C. 2025) ("A free ballot and a fair count must be held inviolable to preserve our democracy."); *id.* (Newby, C.J., concurring, joined by Berger and Barringer, JJ.) (noting that this case "is about preserving the public's trust and confidence in our elections through the rule of law"); *Griffin v. N.C. Bd. of Elections*, 909 S.E.2d 867, 872 (N.C. 2025) (Dietz, J., dissenting) ("Permitting post-election litigation that seeks to rewrite our state's election rules—and, as a result, remove the right to vote in an election from people who already lawfully voted under the existing rules—invites incredible mischief."); *Griffin*, 910 S.E.2d at 352 (Earls, J., concurring in part and dissenting in part) (expressing "confiden[ce] that the members of our judiciary who evaluate these claims shall do so fairly and in

furtherance of our solemn obligation to administer right and justice without favor, denial, or delay" (cleaned up)).

These statements were correct. The administration of elections is crucial to our constitutional system. "Since 1776 the state constitution has recognized the importance of elections and their integrity in the Declaration of Rights." *Bouvier v. Porter*, 386 N.C. 1, 3, 900 S.E.2d 838, 842 (2024). And "[t]his Court has consistently interpreted the North Carolina Constitution to provide the utmost protection for the foundational democratic freedom[ ] of . . . voting." *Libertarian Party of N.C. v. State*, 365 N.C. 41, 55, 707 S.E.2d 199, 208-09 (2011) (Newby, J., dissenting).

Because Respondent's claims implicate fundamental issues about our democratic system of government, this appeal warrants discretionary review.

II. This Case Raises Significant Legal Issues.

Discretionary review is also warranted because this case raises significant questions of state law. N.C. Gen. Stat. § 7A-31(c)(2). The decision below resolved numerous important issues of state election law that broadly affect all election contests going forward. To begin, the Court of Appeals decision allows votes to be discounted that were cast in compliance with the rules at the time of the election. Whether courts in our State may order a remedy of that kind is a legal issue of major significance. *See Griffin*, 909 S.E.2d at 871 (Dietz, J., dissenting) ("The petition is, in effect, post-election litigation that seeks to remove the legal right to vote from people who lawfully voted under the laws and regulations that existed during the voting process.").

The decision below also reached several other important conclusions about state election law that warrant this Court's review. For example, the Court of Appeals held that the Board lacks statutory authority to require that election

protesters serve copies of their protests on affected voters. Slip op. at 12-16. The Court held that military and overseas voters must provide a copy of a photo ID with their ballot—invalidating a rule approved without objection by the Rules Review Commission. *Id.* at 25-30; *see also* 08 N.C. Admin Code 17 .0109. And the Court held that a statute unanimously passed by the General Assembly allowing certain overseas voters to vote in state elections was facially unconstitutional—bypassing the statutory three-judge panel process. Slip op. at 30-32.

These holdings are significant to the jurisprudence of the State by any measure. They affect whether tens of thousands of votes will be counted in this race. And they will affect how future elections—and post-election protests over those contests—are conducted as well. The final word on these important state-law issues should come from the State's highest court.

III. The Decision Below Conflicts with Decisions of this Court.

The decision below also warrants discretionary review because it conflicts with this Court's precedent. N.C. Gen. Stat. § 7A-31(c)(3).

First, the decision below conflicts with this Court's decision in *Pender County v. Bartlett*, 361 N.C. 491, 649 S.E.2d 364 (2007). When, as here, a candidate challenges longstanding election statutes and Board rules, *Pender County* requires the party to bring those challenges well in advance of the election. The reason is that voters, candidates, and election officials all act "in reliance upon" the rules in place during the voting process. *Id.* at 510, 649 S.E.2d at 376. To retroactively change those rules after the election has concluded would hardly "minimize disruption" to elections, as *Pender County* instructs. *Id.*

Second, the decision below conflicts with a line of authority from this Court dating back more than a century. *See Lattimore*, 120 N.C. 426, 26 S.E. 638 (1897).

This longstanding precedent holds that it is fundamentally unfair, and therefore unlawful, to retroactively cancel votes that were cast in compliance with official guidance from election officials. *See, e.g., Woodall v. W. Wake Highway Comm'n*, 176 N.C. 377, 388-89, 97 S.E. 226, 231-32 (1918); *Overton v. Mayor of Hendersonville*, 253 N.C. 306, 315-16, 116 S.E.2d 808, 815 (1960). In fact, this Court has specifically held that it is unlawful to discount votes in the circumstances alleged here—where a candidate claims that election officials made errors in registering voters during the registration process. *See id.* Yet the decision below "inexplicably avoids discussion of these cases altogether." Slip op. at 28 n.7 (Hampson, J., dissenting).

Permitting the cancellation of votes cast in compliance with the rules in place during the election, as the decision below endorses, cannot be squared with this Court's precedent.

ISSUES TO BE BRIEFED

If this Court allows the petition, the Board will present the following issues:

1. Did the Board correctly dismiss Respondent's protests because they seek to change established election rules in close proximity to an election?
2. Did the Board correctly dismiss Respondent's protests because retroactively invalidating votes that were cast consistent with the rules in place during the voting process would be fundamentally unfair?
3. Did the Board correctly dismiss Respondent's protests for providing inadequate notice under state law to challenged voters?
4. Did the Board correctly dismiss under state law Respondent's protest that is based on allegedly incomplete voter registrations?

5. Was the Board correct to conclude that state law does not require military and overseas voters to submit a copy of their photo ID with their ballots?
6. Was the Board correct to comply with a state statute allowing certain military and overseas voters to vote in state elections, and must Respondent's challenge to that statute be resolved in the first instance by a three-judge panel?
7. Even if Respondent's protests had merit, does the remedy ordered by the Court of Appeals below, which bypasses the statutorily required evidentiary-hearing stage, violate state law?

CONCLUSION

The Board respectfully requests that this Court allow discretionary review of the issues raised in this petition.

This the 6th day of April, 2025.

/s/ Electronically submitted
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N.C. R. App. P. 33(b) Certification:
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This the 6th day of April, 2025.

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